



DEED OF NOVATION

among

Camfil India Private Limited

(formerly Camfil Air Filtration India Private Limited)

and

Scala Licence B.V.

and

Epicor Software Technologies India LLP



This Deed is dated and made effective as of the date signed by Epicor's authorised signatory ("**Effective Date**").

- (1) **Camfil India Private Limited (formerly Camfil Air Filtration India Private Limited)**, a company formed under the laws of India whose registered office is located at 62, Industrial Development Colony, Mehrauli Road, Gurugram -122001, Haryana, India (**Customer**);
- (2) **Scala Licence B.V.** incorporated and registered in the Netherlands whose registered office is located at Prins Bernhardplein 200, 1097 JB, Amsterdam, the Netherlands (**Scala Licence BV**); and
- (3) **Epicor Software Technologies India LLP**, a company formed under the laws of India with registration number: 29AAGFE7426A1ZM whose registered office is located at c/o Coworks Coworking Spaces Pvt. Ltd, RMZ Ecoworld, Ground Floor Bay Area 6A ORR, Devarabeesanahalli Village, Karnataka 560103, India (**Epicor Software India**).

each a "**Party**" and together the "**Parties**"

RECITALS

- (A) Customer and Scala Licence B.V. are party to an end user licence agreement dated 22 June 2016 for the licence, by Customer, of Epicor's software and related services (**EULA**), a copy of which is set forth at Schedule 1 to this Deed;
- (B) As of the Effective Date of the EULA, Epicor Software India was not incorporated in India and, as a consequence, Scala Licence BV and Customer agreed that Epicor's contracting party to the EULA would be Epicor's Netherlands based entity known as "Scala Licence B.V" until such time as Epicor's new India entity was incorporated and registered for tax purposes;
- (C) On 6 October, 2017, Epicor Software Technologies LLP was incorporated pursuant to section 12 (1) of the Limited Liability Partnership Act 2008;
- (D) As Epicor Software India is now operational, Scala Licence B.V. desires to transfer its rights and obligations under the EULA to the Epicor Software India; accordingly, Customer has agreed to novate the EULA to Epicor Software India and has further agreed to release Scala Licence B.V. from liability for any failure by Scala Licence B.V. to perform its obligations under the EULA before the Effective Date, on the basis that Epicor Software India is to assume liability for those failures in Scala Licence B.V.'s place.



- (E) The Parties have therefore agreed to novate Scala Licence B.V.'s rights, obligations and liabilities under the EULA to Epicor Software India on the terms of this Deed with effect on and from the **Effective Date**.

Agreed terms

1. Definitions and Interpretation.

- 1.1 In this Deed, unless the context requires, the following words have the following meanings:

"this Agreement" means this Deed (including any schedule or annexure to it);

"Effective Date" means the date signed by Epicor's authorised signatory.

- 1.2 a reference to:

- (a) any party includes its successors in title and permitted assigns;
- (b) clauses and schedules are to clauses and schedules of this Deed and references to sub-clauses and paragraphs are references to sub-clauses and paragraphs of the clause or schedule in which they appear.

2. Recitals. The Recitals form part of this Agreement.

3. Novation. With effect from the Effective Date:

- 3.1 Scala Licence B.V. transfers all its rights and obligations under the EULA to Epicor Software India.
- 3.2 Epicor Software India shall enjoy all the rights and benefits of Scala Licence B.V. under the EULA. Epicor Software India agrees to perform the EULA and be bound by its terms in every way as if it were the original Party to it in place of Scala Licence B.V.
- 3.3 Customer agrees to perform the ELA and be bound by its terms in every way as if Epicor Software India were the original Party to it in place of Scala Licence B.V.
- 3.4 All references to Scala Licence B.V. in the EULA shall be read and construed as references to Epicor Software India.

4. Release of obligations and liabilities

- 4.1 The Customer (as the continuing party) and Scala Licence B.V.(as the outgoing party) release each other from all future obligations to the other under the EULA.

- 4.2 Subject to clause 4.3 below, each of the Customer (as the continuing party) and Scala Licence B.V. (as the outgoing party) releases and discharges the other from all claims and demands under or in connection with the EULA, including without limitation claims for negligence and fraud, whether arising before, on or after the Effective Date, and in each case whether known or unknown to the releasing Party.
- 4.3 Nothing in this Deed shall affect or prejudice Scala Licence B.V.'s claim against the Customer for claims arising out of or in connection with: overdue payments due under the EULA.
- 4.4 Customer (as the continuing party) and Epicor Software India (as the incoming party) shall have the right to enforce the EULA and pursue any claims and demands under the EULA against the other with respect to matters arising before, on or after the Effective Date as though Epicor Software India were the original Party to the EULA instead of Scala Licence B.V.

5. Indemnity

- 5.1 Epicor Software India shall indemnify Scala Licence B.V. against all liabilities, costs, expenses, damages and losses that Scala Licence B.V. suffers or incurs under or in connection with the EULA as a result of Epicor Software India's failure to perform or satisfy its assumed obligations under the EULA.

6. General

6.1 Entire Agreement and Conflicts

This Agreement and the documents referred to in it set out the entire agreement and understanding between the Parties in respect of the subject matter of this Agreement.

6.2 Variation

No purported variation of this Agreement shall be effective unless it is in writing and signed by or on behalf of each of the Parties.

6.3 Invalidity

To the extent that any provision of this Agreement is found by any court or competent authority to be invalid, unlawful or unenforceable in any jurisdiction, that provision shall be deemed not to be part of this Agreement, it shall not affect the enforceability of the remainder of this Agreement nor shall it affect the validity, lawfulness or enforceability of that provision in any other jurisdiction.

6.4 Costs and Expenses.

Each Party shall bear its own costs and expenses incurred in the preparation, execution and implementation of this Agreement.

6.5 Notices.

6.5.1 Any notice [or other communication] given to a party under or in connection with this agreement shall be in writing and shall be:

- (a) delivered by hand or by pre-paid first-class post or other next working day delivery service at its registered office (if a company) or its principal place of business (in any other case); or
- (b) sent by fax to its main fax number of the party's international headquarters.

6.5.2 Any notice shall be deemed to have been received:

- (a) if delivered by hand, on signature of a delivery receipt [or at the time the notice is left at the proper address;
- (b) if sent by pre-paid first-class post or other next working day delivery service, at 9.00 am on the third business day after posting or at the time recorded by the delivery service.
- (c) if sent by fax at 9.00 am on the next business day after transmission.

6.5.3 This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

6.5.4 A notice given under this agreement is not valid if sent by email.

7. Governing law

7.1 This Deed and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation shall be governed by and construed in accordance with the laws of the Republic of India.

8. Jurisdiction

8.1 Each Party irrevocably agrees that the civil courts located in Bangalore, India shall have exclusive jurisdiction to settle any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with this Deed or its subject matter or formation.



This Agreement has been executed as a Deed and is delivered and takes effect on the date stated at the beginning of it.

SIGNED:

Customer	Scala Licence B.V.	Epicor Software India
Executed as a Deed by Camfil India Private Limited (formerly Camfil Air Filtration India Private Limited)	Executed as a Deed by Scala Licence BV	Executed as a Deed by Epicor Software Technologies India LLP
Address: 62, IDC, Mehrauli Road, Gurgaon - 122001 Haryana, India	Address: Prins Bernhardplein 200, 1097 JB, Amsterdam, Netherlands	Address: c/o Coworks Coworking Spaces Pvt. Ltd, RMZ Ecoworld, Ground Floor Bay Area 6A ORR, Devarabeesanahalli Village, Karnataka 560103, India
First Director		
First Director Signature:	First Director Signature:	First Partner Signature:
Printed Name of First Director:	Printed Name of First Director : Richard Clark	Printed Name of First Partner:
Second Director		
Second Director Signature:	Second Director Signature:	Second Partner Signature:
Printed Name of Second Director:	Printed Name of Second Director :	Printed Name of Second Partner :
Signature of Witness:	Signature of Witness:	Signature of Witness:
Name and Address of Witness: Name: Address:	Name and Address of Witness: Name: Address:	Name and Address of Witness: Name: Address:



SCHEDULE 1

END USER LICENCE AGREEMENT DATED 22 JUNE 2016

END USER LICENCE AGREEMENT Scala License BV

This End User Licence Agreement ("Agreement") is made between Scala License B.V., whose address is Prins Bernhardplein 200, 1097JB, Amsterdam, The Netherlands (hereinafter referred to as "Epicor") and the person or entity whose name appears on the signature page of this Agreement as the Customer and is made as of the date signed by Epicor on the signature page of this Agreement ("Effective Date"). Epicor and Customer agree that the provisions of this Agreement apply to Epicor's license of the Software to Customer, except as otherwise provided on an Order placed in connection with this Agreement.

1. DEFINITIONS

In this Agreement, the words "you," "your," and "Customer" mean the person or entity named on the signature page of this Agreement as the Customer. The words "we," "us," "our," and "each" mean Epicor. The term "Software" means all software products (including Software Updates) obtained from Epicor as denoted on an Order or otherwise and the related Documentation. The term "Documentation" means Epicor's standard user guides, installation guides, manuals and release notes accompanying the Software (whether printed or in electronic format). The term "Order" means Epicor's standard form for ordering software product licences. "Software Update" means any update, patch, new release and/or new version of a licensed Software product. The term "affiliates" as used herein means all companies now or hereafter controlling, controlled by, or under common control with either you or us (as the context dictates). As used herein, "control" "controlled" or "controlling" means, with regard to any entity, the equitable ownership, directly or indirectly, of more than 50 percent (or the maximum permitted by local law, if less) of the voting stock (or other ownership interest ordinarily having voting rights, if not a corporation).

2. GRANT; USE

(a) Subject to the terms of this Agreement, we grant you a perpetual, non-exclusive licence to use the Software in object code form solely for your and your affiliates' internal business purposes. Upon complete payment of the applicable Software licence fees, the licence shall be considered royalty-free. You are responsible for the acts and omission of your affiliates and your and any of your affiliates' subcontractors, agents and consultants with respect to their use of the Software and this Agreement, and all such acts or omissions shall be treated as your acts or omissions. This Agreement does not entitle you to services such as installation, implementation, training or education, which are available to you under terms of a separate agreement between us.

(b) You and your affiliates may only use the Software in accordance with the applicable licence types designated in an Order, which are more fully described as follows:

(i) Concurrent User Software Licence: Each "Concurrent User" Software licence allows multiple individuals to access and use the associated Server Software, so long as no more than one individual is using the licence to access the associated Server Software at any given time.

(ii) Named User Software Licence: Each "Named User" Software licence allows a single designated individual (which individual may change from time to time subject to the specific limitations of the licence) to access and use the associated Server Software.

(iii) Network Software Licence: A "Network" Software licence is a Server Software licence that may be installed and used on one or more Servers across a wide area and/or local area network ("Network") so long as the total number of active Named Users across the entire Network does not exceed the number of Named Users licensed in connection therewith.

(iv) Server Software Licence: A "Server" Software licence provides services or functionality on one computer or server ("Server"). Other than in the case of an Unlimited Server or Network Software licence, you may install 1 copy of the Server Software on a single Server for each Server Software licence acquired. Each Server Software licence includes a Client Software licence, if applicable. A "Client" Software licence allows a device to access or use Server Software. You may install and use Client Software on any number of internal devices so long as it is being used only in conjunction with the Server Software.

(v) Unlimited Server Software Licence: An unlimited server ("Unlimited Server") Software licence allows the Server Software to be installed and used on one or more Servers, subject to user limitations. In no additional licence fees.

3. OWNERSHIP; REVERSE ENGINEERING; RESTRICTIONS

(a) This Software is licensed, not sold, to you. Epicor and its licensors retain all title and ownership to the Software. Epicor and its licensors reserve all rights in the patents, copyrights, trade secrets and other intellectual property in the Software. You may make a reasonable number of copies of the Software for back-up, archival, testing and disaster recovery purposes. You may not use the Software to provide time sharing services or operate a services bureau for third parties.

(b) You may copy the Documentation solely to facilitate your use of the Software in accordance with, and subject to, the terms and conditions contained herein.

(c) You understand that the Software, Documentation and the terms and pricing under this Agreement as well as any other confidential proprietary information provided to you by or for us in connection with this Agreement constitute valuable properties and trade secrets of Epicor, which are proprietary and confidential. You agree to maintain the confidentiality of such information and to protect the information as a trade secret by preventing any unauthorised copying, use or disclosure of such information. In doing this you agree to maintain at least the same procedures that you maintain with respect to your own confidential information, which shall not be less than reasonable care. You may not disclose the Software or Documentation to a competitor of ours or disclose the results of any benchmark test of the Software to any third party without Epicor's prior written approval.

(d) You may not remove, alter or destroy any proprietary, trademark or copyright notices placed upon or contained within the Software or Documentation. You acquire no rights of any kind in or to any trademark, trade name, logo or product designation under which the Software was or is marketed and you may not make any use of the same for any reason.

(e) The Software is not designed or intended for use in hazardous environments, including without limitation, in the operation of aircraft or other modes of human mass transportation, nuclear or chemical facilities, life support systems, implantable medical equipment, motor vehicles or weaponry systems, or any other application in which the failure of the Software could lead to death or serious bodily injury of a person or to severe physical or environmental damage. You hereby warrant that you will not use or redistribute the Software for such purposes. SUBJECT TO SECTIONS 5(d) AND 7(a) BELOW, EPICOR AND ITS SUPPLIERS EXPRESSLY DISCLAIM, TO THE FULLEST EXTENT PERMITTED BY LAW, ANY LIABILITIES, REPRESENTATIONS, CONDITIONS OR WARRANTIES (EITHER EXPRESS OR IMPLIED) FOR SUCH USES.

(f) You agree not to reverse engineer, modify, decrypt, extract, disassemble, copy, or decompile the Software, or permit anyone else to do so, provided however that you may make as many back-up copies of the Software as may be necessary for its lawful use and (i) in the case of decompilation, you may incidentally decompile the Software only to the extent that it is essential so to do in order to achieve interoperability of the Software with another software program; and (ii) the information obtained by you during such decompilation is only used under the terms of this Agreement and is not disclosed or communicated to any third party to whom it is not necessary to disclose or communicate such information without our prior written consent and is not used to create any software that is substantially similar to the expression of the Software nor used in any manner that would be restricted by copyright.

(g) You will promptly notify us upon becoming aware of any unauthorised use of any Software or Documentation.

(h) Certain Software contains Java-based software. You may not create a Java-related Application Programming Interface ("API") or distribute the API to others for serial or application development.

for free use by all developers of Java-based software. Further, you may not modify the Java Platform Interface by creating additional classes within the JPI or otherwise causing the addition to or modification of the classes in the JPI. To the extent your Software contains Java-based software, Oracle Corporation Inc and its successors are intended third party beneficiaries to this Agreement solely for the purpose of enforcing this Section.

4. CHARGES AND PAYMENT

You agree to pay Epicor the fees specified in each Order in the manner provided in the Order. You will pay all VAT, sales, use, excise and other similar taxes payable as a result of this Agreement (other than income taxes payable by Epicor). To the extent that any government levy or charge is required to be deducted by you in respect of any sums due from you to us prior to payment, the sums due to us will be grossed up such that we will receive the same amount as if no such deduction was required. We will reasonably cooperate with you to avoid or minimise such deduction, or to establish any exemption from or reduction of such deduction or to obtain applicable reliefs, credit or refunds as to such deduction and to pay to you any amounts equivalent to such reliefs, credits or refunds (if any) that we obtain less our reasonable costs in doing so.

5. LIMITED WARRANTY

(a) We warrant that the Software will substantially conform to and operate according to our then current Documentation under normal use, and that the media will be free from defects in design, material or workmanship. We further warrant to you that the Software shall contain no contaminants, including any codes or instructions that may be used to access, modify, delete, damage or disable your computer systems beyond the legitimate use of licence keys that limit the usage of the Software to that licensed by you.

(b) The foregoing warranty is limited to a period of 1 year from the date we first ship or make the Software electronically available to you. As our sole liability to you in the case of a breach of the foregoing warranty, and thereafter, subject to Section 2(c) of Exhibit A (Maintenance and Support Schedule) to this Agreement, and for so long as you are obtaining maintenance and support from us, we will use our commercially reasonable efforts to provide maintenance, modifications or fixes with respect to any error, non-conformity or defect in the Software so that the Software can be used substantially in accordance with the specifications set forth in the Documentation. We do not warrant that the functions contained in the Software will meet your requirements or that the Software will operate uninterrupted or error free.

(c) EXCEPT FOR THE EXPRESS WARRANTY IN SECTION 5(a) AND SUBJECT TO SECTION 5(d), THE SOFTWARE IS PROVIDED "AS IS", AND TO THE FULLEST EXTENT PERMITTED BY LAW, EPICOR AND ITS LICENSORS EXCLUDE ALL OTHER EXPRESS AND IMPLIED TERMS, CONDITIONS, WARRANTIES OR REPRESENTATIONS REGARDING THE SOFTWARE ARISING BY LAW OR OTHERWISE, INCLUDING WITHOUT LIMITATION ANY IMPLIED TERMS OF SATISFACTORY QUALITY, REASONABLE SKILL AND CARE AND FITNESS FOR A PARTICULAR PURPOSE.

(d) Nothing in this Agreement shall operate to exclude liability for i) death or personal injury resulting from negligence; ii) breach of obligations arising from section 12 of the Sale of Goods Act 1979 or section 2 of the Supply of Goods and Services Act 1982; or iii) fraud.

6. INDEMNIFICATION

At our expense we will defend and indemnify you against any third party claim that the Software infringes a patent, trademark, copyright or other intellectual property right enforceable in the United States or European Union in accordance with this Agreement which is owned by such third party. We will pay all costs, damages and attorney's fees that a court finally awards in favour of such third party as a result of such claim or which we agree to pay such third party in settlement of such claim. But you must give us prompt written notice of the claim, cooperate fully with us in its defence, and give us sole authority to control the case and any related settlement negotiations. We will not be responsible for any settlement made without our written consent. Our obligations under this Section do not apply to the extent that a claim is based on or caused by (1) any alteration or modification of the Software including without limitation any alteration or modification developed by us in accordance with written instructions, specifications, requirements, designs, methodologies or algorithms provided by you or developed jointly by you and us; (2) the combination, operation, or use of the Software with software or equipment which was not recommended or provided by us solely to the extent that the claim would not have arisen but for such

contemplated by the Documentation or authorized by us; (4) the use of superseded or altered version of the Software if infringement would have been avoided by use of the latest unaltered version of the Software made available to you at no charge following notice to you that your version of the Software may be infringing and of your need to use the latest unaltered version of the Software. If a third party infringement claim is sustained in a final judgment from which no further appeal is taken or possible or upon our settlement of such claim, or if your use of the Software is enjoined by a court, then we shall, in our sole reasonable election and expense, either: (i) procure your right to continue to use the Software in accordance with this Agreement; (ii) replace or modify the Software to make it non-infringing; or (iii) if (i) and (ii) are not reasonably feasible, terminate this Agreement with respect to the infringing Software and refund to you the licence fees paid by you for such Software. Other than as provided in this Section, you and your affiliates shall have no other remedy against us arising from a claim of actual or alleged infringement of intellectual property rights respecting the Software.

7. LIMITATION OF LIABILITY

(a) The parties agree that, to the fullest extent permissible under law, in no event shall a party, and in the case of Epicor, its suppliers, be liable to the other for:

- (i) any direct or indirect loss of profits, revenue or savings;
- (ii) any direct or indirect loss of use or of data; or
- (iii) any incidental, consequential, indirect, special or punitive damages or losses;

arising out of or related to this Agreement or with respect to the installation, use or operation of the Software, whether in contract, tort, negligence (save in respect of fraud, or death or personal injury resulting from negligence) or other form of action even if the party has been apprised of the possibility of such damages. This Section shall apply notwithstanding any failure of essential purpose of any limited remedy.

(b) The parties hereto specifically agree that except for amounts properly payable to Epicor hereunder, the total liability of either party to the other for damages under this Agreement will not exceed 120% of the sum of (i) all licence fees actually paid by you to Epicor hereunder for the Software and (ii) all maintenance and support fees paid by you to Epicor for the then current annual maintenance and support period. Notwithstanding the foregoing, Epicor's total liability to you for damages relating to any third party owned Software product we resell to you will not exceed the licence fees paid to us for such product.

(c) The limits described in this Section 7 shall not apply with respect to a breach of the obligations under Sections 3 (Ownership; Reverse Engineering; Restrictions) and 10 (Export/Receipt of Improper Consideration), and shall not limit Epicor's obligations under Section 6 (Indemnification).

8. ASSIGNMENT

You may not license, sublicense, assign, sell, rent, lease, or otherwise transfer the Software or this Agreement without our prior written consent. Notwithstanding the foregoing, you may, without our consent, (a) assign this Agreement to an affiliate, provided you remain liable for such entity's performance; and (b) assign all, but not part, of the Software and this Agreement to another entity pursuant to a merger, consolidation or acquisition of all or substantially all of your assets; provided that in each case you notify us of the assignment in writing and the assignee agrees to be bound by this Agreement. Any assignment or transfer of this Agreement or the Software and licences hereunder may not include any third party software which you have licensed from us under a separate third party license agreement. Such assignment shall be governed by the terms of that third party agreement. We agree to make reasonable efforts to obtain such consent upon your request. We may transfer this Agreement without your consent.

9. TERM AND TERMINATION

Each licence granted to you under this Agreement will begin on the day we ship the media containing the Software (or make the same available electronically) to you, and will continue until this Agreement is terminated with respect to that licence. Either party may terminate this Agreement, in addition to any other remedies it may have, if the other party is in default of a material obligation under this Agreement and fails to cure such default within 30 days following its receipt of written notice of the default. Within 30 days following termination of this Agreement, whether terminated by you or us, you will destroy all copies of the Software, together with all Documentation

modifications, and enhancements thereto, or else return all copies to us.

10. EXPORT/RECEIPT OF IMPROPER CONSIDERATION

(a) You acknowledge that all or part of the Software and any derivatives thereof may be subject to the laws and regulations of the U.S.A and other jurisdictions regarding the export and reexport of goods and services to certain proscribed countries, entities, organisations and individuals ("Export Restrictions"). Accordingly, you agree to comply with all applicable Export Restrictions imposed by the U.S. or other governments. You agree that you will not commit any act or omission that will result in a breach of any such Export Restrictions, including those relating to the export or reexport of cryptographic items. If you breach this Section, Epicor may terminate this Agreement immediately. Further, you unconditionally accept full responsibility for your compliance with this Section and agree to defend, indemnify and hold us harmless from and against any claim, loss, liability, expense or damage (including fines or legal fees) incurred by us or our affiliates or group companies or suppliers as a result of your violation of this Section.

(b) You have, and upon each submission of an Order, you shall have, not received or been offered any illegal or improper bribe, kickback, payment, gift, or thing of value from any of our employees or agents in connection with this Agreement. Reasonable gifts and entertainment provided in the ordinary course of business do not violate the above restriction.

11. GOVERNING LAW AND DISPUTES; LANGUAGE

This Agreement shall be governed and construed in accordance with the laws of England, exclusive of its conflicts of law provisions and the parties hereby submit to exclusive jurisdiction of the English courts. The parties hereto expressly waive the application of the United Nations Convention on Contracts for the International Sale of Goods to the terms of this Agreement.

12. GENERAL

(a) Any failure by either party to enforce at any time or for any period of time the provisions of this Agreement shall not be construed as a waiver of such provision, or of the right to enforce that provision.

(b) Each of us agrees that any material breach of this Agreement may cause the other party irreparable harm, and that such non-breaching party may seek injunctive relief.

(c) In the event any part of this Agreement is held to be unenforceable, that shall not affect the enforceability of the remaining provisions. The Parties will replace any unenforceable provision by an enforceable provision which comes as close as possible to the Parties' intentions or to what the Parties would have intended according to the aim and purpose of this Agreement had they been aware of the unenforceability of such provision upon conclusion of this Agreement.

(d) The headings of each provision of this Agreement are for reference purposes only. This Agreement may not be modified unless the modification is in a writing signed by both parties. This Agreement, and the Order that accompanies it, is complete and constitutes the entire agreement between us with respect to the Software. Each of the parties hereto acknowledges and agrees that in entering into this Agreement, it does not rely on, and shall have no remedy in respect of, any statement, representation, warranty or understanding (whether negligently or innocently made) of any person (whether party to this Agreement or not) other than as expressly set out in this Agreement. This Agreement will be binding on and will inure to the benefit of the heirs, executors, administrators, successors and assignees of the parties hereto but nothing in this Section will be construed as consent to any assignment of this Agreement except as provided above.

(e) Any notice or other communication required or permitted in this Agreement shall be in writing and shall be deemed to have been duly given on the day of service if served personally or by facsimile transmission with confirmation, or 5 days after mailing if mailed by First Class mail, registered or certified, postage prepaid, and

addressed to Epicor at the address set forth above or addressed to Customer at the address set forth in the initial Order, or at such other addresses as may be specified by either party pursuant to the terms and provisions of this paragraph.

(f) On our written request, no more frequently than annually, you shall provide us with a signed certification (i) verifying that the Software is being used pursuant to the terms of this Agreement, including any user limitations and (ii) listing the locations, types and serial numbers of the hardware on and at which the Software is being used. You agree to grant us reasonable access to all relevant locations and provide reasonable co-operation, upon prior notice during normal business hours, to allow us to audit the use of the Software.

13. SOFTWARE MAINTENANCE AND SUPPORT

Upon execution of this Agreement, you shall pay to us the annual maintenance and support fees specified on the Order. Payment of the maintenance and support fees entitles you to receive the maintenance and support described in the Maintenance and Support Schedule attached hereto as Exhibit A.

14. SOURCE CODE ESCROW

Epicor has deposited in escrow a copy of the source code for its proprietary (i.e., non third party) Software. The escrow provides that in the event of one of a number of enumerated release conditions occurs, including Epicor ceasing to do business or materially breaching its maintenance and support obligations under this Agreement, a subscribing customer may obtain a copy of the escrow source code material for those modules of the proprietary Software licensed to it. You may subscribe to the master escrow arrangement at any time upon agreeing to the terms of the preferred beneficiary agreement and paying the applicable escrow fees.

15. THIRD PARTY SOFTWARE USE

Notwithstanding anything to the contrary contained herein, certain third party software products supplied by Epicor are subject to end user licence agreements separately issued by the third party suppliers as indicated on an Order. For example, all Microsoft products are licensed pursuant to the Microsoft End User Licence Agreement (EULA) accompanying the Microsoft products. In such cases, this Agreement does not grant you any rights to use such third party software. Your use of such third party software is subject to the terms and conditions of the end user licence agreement accompanying that software. Additionally, unless Epicor has expressed confirmed otherwise in writing, all third party software products licensed to you by us are licensed only for use in connection with your Epicor proprietary software products.

16. PRIVACY ACT; RIGHTS OF THIRD PARTIES

(a) It is acknowledged that from time to time you and your affiliates may provide to us certain data which represents data which is personal to individual persons ("personal data") and you consent to our passing such data to our group of companies including those in the United States and elsewhere solely for purposes of administering our business relationship and/or performing our obligations under this Agreement. Additionally you agree that we may use your business contact details to contact you by mail, telephone, e-mail, facsimile or otherwise with offers of goods and services or forthcoming events or conferences that may be of interest to you. If you do not want to be contacted by us or our group of companies for marketing purposes, contact your local Epicor sales office, but remember if you do, we will not be able to notify you of special offers or promotions. You agree to procure the consent of all individuals, whose personal details you provide to us, to the transfer of their personal data to Epicor's group of companies including those in the United States and elsewhere solely for purposes set out above.

(b) No term of this Agreement is enforceable pursuant to the Contracts (Rights of Third Parties) Act 1999 by any person who is not a party to it unless otherwise expressly provided herein. The parties may by agreement rescind or vary any term of this Agreement without the consent of any third party beneficiaries to this Agreement.

EXHIBIT A**MAINTENANCE AND SUPPORT SCHEDULE**

Subject to Section 13 of the Agreement, but except as otherwise set forth in an Order, we will provide you with maintenance and support services in accordance with our standard maintenance and support policies (as updated by Epicor from time to time, details of such updates shall be available to the Customer upon request) while you are subscribed to an Epicor maintenance and support plan:

1. SOFTWARE MAINTENANCE AND SUPPORT

- (a) **Support Centres.** We will provide you with telephone, e-mail, and facsimile support to answer general Software product questions and to identify and diagnose Software issues during the normal business hours of the international support centre responsible for covering the country in which your office as set out above is located or such other location as may be agreed between us, Monday through Friday (local time). You may contact, and receive support from, our international support centres worldwide, depending on the urgency and severity of the matter, subject to Epicor's reasonable discretion. We agree that we will use our commercially reasonable efforts in the performance of our maintenance and support services hereunder, and will have qualified and trained personnel knowledgeable in the Software to provide such services. Unless otherwise specifically agreed to by us in writing, support for the underlying operating system or other non-Epicor technical/platform issues are not covered under this Schedule and support for such issues, if requested and available, will be provided on a time and materials basis nor will we provide support for your or your affiliate's third party agents or consultants under this Agreement.
- (b) **Customer Centre.** We will provide you unlimited access to our self-service Customer Centre website (<http://support.epicor.com>). The Customer Centre website includes our support knowledge base (Answerback), product release guides and notes, known product issues and links to download available Software EPRs (Emergency Patch Releases) and Service Packs.
- (c) **Software Updates.** We will make available to you (without additional licence fees) all Software Updates if and when commercially released by us during the term of this plan; provided, however, that in order to receive a new version of a Microsoft Software product acquired from us, you must also then be subscribed to Microsoft Upgrades/Embedded Maintenance. Software Updates may not include or accommodate modifications that have been made to the Software.
- (d) **Development Tools.** Support for our developer tool products is available from your Epicor regional Developer Support centre and may be obtained during such centre's normal business hours, Monday through Friday (local time), excluding company holidays. Because of the complexity of the development tools, we reserve the right to withhold support from anyone that has not satisfied our standard training requirements in effect from time to time with respect to the specific tool. Standard Developer Support does not include the coding or development of customisations or integration projects.
- (e) **Microsoft Upgrades/Embedded Maintenance.** A Microsoft Upgrades/Embedded Maintenance subscription entitles you to receive new versions of Microsoft Software products acquired from us if and when commercially released.

2. CONDITIONS

- (a) **Cost.** The maintenance and support plan for Epicor's iScala or Epicor ERP software is annually re-priced as being equal to the annual maintenance and support plan fee as denoted in the Order, cumulatively increased by the rate of increase in the European Union Harmonised Indices of Consumer Prices (All Items) in the preceding 12 months.

The maintenance and support plan for all other Epicor software, as well as the Microsoft Upgrades/Embedded Maintenance (if applicable), is annually re-priced as a percentage of the then current list price for the Software. Epicor reserves the right to increase the applicable percentage rate upon 60 days advance written notice to you prior to a scheduled renewal date; provided that in such case maintenance and support fees for Epicor's proprietary (i.e., non third party) Software may not be increased by more than 10% within any given year (i.e., 110% of the prior year's amount) following the date of increase.

Regardless of the Software product, all maintenance fees must be paid by you prior to the commencement of the applicable annual maintenance and support period. We will invoice you for annual maintenance and support for subsequent annual periods approximately 30 to 60 days prior to the expiration of each annual maintenance and support period. We may withhold maintenance and support services at any time the fees for such services remain unpaid beyond the due date without any liability for any issues arising therefrom and without prejudice to your obligation to make such payment (which shall continue to apply) or to any other rights and remedies we may have for your non payment of such fees.

- (b) **Initial Term.** Your Maintenance and Support plan is effective immediately and extends through the last calendar day of the month 1 full year following the Effective Date.
- (c) **Supported Versions.** Provided that you remain current on a Maintenance and Support plan, we will provide the above mentioned maintenance and support services for any release of the Software you receive from us for a minimum of 2 years from the date of general availability of such release but at a minimum, unless we otherwise expressly notify you in writing, for at least the 1 year period following the date that you receive the specific release of Software from us. No refund, pro-rated or otherwise will be given to you if you cancel the plan during a maintenance and support subscription period.
- (d) **Renewal and Lapse.** Your maintenance and support plan for all software licensed from and supported by us will be automatically renewed each year for a further 12 month period upon the expiry of the previous maintenance and support plan for such software unless you expressly notify us in writing not less than 90 days prior to the date of expiry of the then current maintenance and support plan that you do not wish to renew. For the avoidance of doubt, it is not permissible to have a maintenance and support plan for part of the Software and not all. In the event that you decide not to renew your maintenance and support plan and letting your subscription for maintenance and support lapse for such software, we may charge a lapsed maintenance and support fee if you decide to re-subscribe to a maintenance and support plan afterwards. The fee for reinstatement of maintenance and support shall reflect the amount(s) that would have been payable from the date of termination to the reinstatement date based on our standard rates during such period together with, at our discretion, annual interest on such amount(s) from the date(s) that such amounts should have been paid in the absence of termination ("Payment Dates") to the date of reinstatement, such interest to reflect the standard lending interest rate of our bank plus 2% as at the relevant Payment Date and shall be compounded on an annual basis. You must subscribe to a maintenance and support plan in order to receive any support include software updates, releases and fixes.
- (e) **E-mail and Website Access.** We may provide answers to questions, software code examples and other technical documentation via e-mail or our Customer Centre website. You will need e-mail and/or Internet access to access this information.

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3. THIRD PARTY SOFTWARE MAINTENANCE AND SUPPORT; LIMITATIONS

As noted on an Order, this Maintenance and Support schedule does not apply with respect to certain third party software products. Maintenance and support for such products, if available, is available from the third party software suppliers designated on the Order pursuant to a separate agreement with such suppliers. Our support for the Microsoft products licensed from us will be limited to assistance with such products for use with other products licensed from us.

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Each party has caused this Agreement to be executed by its duly authorised representative.

Customer: _____

Signature: _____

Print Name: KATLASH SHARMA

Title: CFO

Address: 62 Industrial Develop-

ment Colony, Mehrauli
Road, Gurgaon-122001 (India)

Phone: 91-124-4874115

Facsimile: 91-124-4082405

Email: Katlash.Sharma@Camfil.com

Date: 22-06-2016

Scala License B.V.

Signature: _____

Print Name: _____

Title: _____

Date: 6/22/2016

DocuSigned by:

Richard Clark

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